Layo

Service agreement

Web & Software Development Services Agreement

Agreement no. _____ Date _____

THE DEVELOPER

Laniya Molayoninujesu, trading as Layò the developer

Address: Lagos, Nigeria

hello@layothedeveloper.com · +234 807 945 1031

THE CLIENT

Name: _____

Company: _____

Address: _____

Email / phone: _____

The Developer and the Client agree that the Developer will deliver the project described in Schedule A on the terms below. Words in bold are defined where they first appear.

1 Services

1.1 The Developer will provide the web and software development services described in Schedule A (the **Services**), including the deliverables, milestones and any exclusions listed there.

1.2 Anything not listed in Schedule A is outside the scope of this Agreement and is handled as a change request under clause 6.

2 Timeline

2.1 The Developer will work to the milestones in Schedule A. The timeline depends on the Client supplying content, access and feedback on time. If the Client is late, the timeline moves by at least the length of the delay.

2.2 The Developer will send progress updates at least once a week while the project is active.

3 Fees and payment

3.1 The total fee for the Services is _____ (in words: _____), payable in _____ (Naira or US dollars).

3.2 Unless Schedule B sets a different schedule, the fee is paid in two parts: **50% before work starts** (the **deposit**) and **50% on delivery**, before the website or app is launched or handed over.

3.3 Invoices are due within 7 days. If a payment is more than 14 days late, the Developer may pause work until it is paid, and the timeline moves accordingly.

3.4 The deposit secures the Developer's time for the project and is not refundable once work has started, except as set out in clause 13.

3.5 Third-party costs such as domain names, hosting, paid plugins, licences, stock images and API usage are paid by the Client, either directly or reimbursed at cost with the Client's prior approval.

3.6 Each party pays its own bank charges. For international payments, the Client covers transfer fees so that the Developer receives the full invoiced amount.

4 Client responsibilities

4.1 The Client will name one person to give feedback and approvals, provide text, images, brand assets and account access in good time, and reply to requests for feedback within 5 working days.

4.2 The Client confirms it has the rights to any material it supplies, and is responsible for the accuracy and legality of its content.

5 Revisions

5.1 Each design and build milestone includes up to two rounds of revisions. A round is one consolidated list of changes. Further rounds are billed at the Developer's hourly rate in Schedule B.

6 Changes to scope

6.1 Either party may propose changes. The Developer will confirm the effect on price and timeline in writing (email is enough) before doing the work. Changes only become part of the Services once the Client approves them in writing.

7 Acceptance

7.1 When a milestone or the final work is delivered, the Client has 7 days to test it and report, in writing, anything that does not match Schedule A. The Developer will fix those items. If the Client reports nothing within 7 days, or launches or uses the work publicly, the work is treated as accepted.

8 Ownership

8.1 Once the Client has paid all fees in full, the Client owns the final deliverables made specifically for this project, including the design, code and content created for it, and the Developer will hand over all source files, logins and access keys.

8.2 The Developer keeps ownership of its pre-existing tools, code libraries and know-how used in the project, and grants the Client a permanent, non-exclusive licence to use them as part of the deliverables.

8.3 Open-source and third-party components remain under their own licences.

8.4 Until full payment, the Developer keeps ownership of the deliverables and the Client may not launch or use them publicly.

9 Portfolio

9.1 The Developer may show the finished work, the Client's name and a short description in its portfolio and marketing, unless the Client asks in writing for it to stay private. Confidential information is never shown.

10 Confidentiality

10.1 Each party will keep the other's confidential information private and use it only for this project. This continues for 3 years after the Agreement ends. It does not apply to information that is already public, or that the law requires a party to disclose.

11 Data protection

11.1 Where the Developer handles personal data on the Client's behalf, it will do so only on the Client's instructions, keep it secure, and comply with the Nigeria Data Protection Act 2023 and, where it applies, the GDPR. The Client is responsible for having a lawful basis to collect that data and for its own privacy policy.

12 Warranty and support

12.1 For 30 days after launch, the Developer will fix, at no cost, any defect that stops the work from performing as described in Schedule A.

12.2 This does not cover changes made by anyone other than the Developer, problems caused by hosting providers or other third-party services, browser or platform updates released after delivery, or new features. Ongoing maintenance is available under a separate monthly plan.

13 Termination

13.1 Either party may end this Agreement with 14 days' written notice. Either party may end it immediately if the other seriously breaches it and does not fix the breach within 14 days of being asked to.

13.2 If the Agreement ends early, the Client pays for all work done up to the end date (at least the deposit) and any approved third-party costs. Once that is paid, the Developer hands over the work completed so far.

13.3 If the Developer ends the Agreement without cause, it refunds any amount paid for work not yet done.

14 Limitation of liability

14.1 Neither party is liable for indirect or consequential losses, including lost profits, revenue or data. The Developer's total liability under this Agreement is limited to the fees the Client has paid under it. Nothing in this Agreement limits liability that cannot be limited by law.

15 Independent contractor

15.1 The Developer works as an independent contractor, not an employee, and is responsible for its own taxes. The Developer may use trusted subcontractors for specialist tasks, remains responsible for their work, and will tell the Client in advance.

16 Events outside anyone's control

16.1 Neither party is responsible for delays caused by events outside its reasonable control, such as power or internet outages, natural disasters, strikes or government action. The affected party will tell the other promptly, and the timeline moves accordingly.

17 Disputes and governing law

17.1 This Agreement is governed by the laws of the Federal Republic of Nigeria. The parties will first try to settle any dispute by good-faith discussion within 14 days. If that fails, they will try mediation at the Lagos Multi-Door Courthouse before going to court. The courts of Lagos State have jurisdiction.

18 General

18.1 This Agreement, with its schedules and the accepted proposal, is the whole agreement between the parties and replaces earlier discussions. If the proposal and this Agreement conflict, this Agreement wins.

18.2 Changes to this Agreement must be in writing and accepted by both parties. Notices may be sent by email to the addresses below.

18.3 This Agreement may be signed electronically and in counterparts; each signed copy counts as an original.

Signatures

By signing, both parties agree to this Agreement and its schedules.

FOR THE DEVELOPER

Signature

Name: Laniya Molayoninujesu

Date: _____

FOR THE CLIENT

Signature

Name: _____

Title: _____

Date: _____

Schedule A

Project details

PROJECT NAME	
PROJECT TYPE	☐ Landing page ☐ Business website ☐ E-commerce ☐ Web app ☐ Mobile app ☐ Integration ☐ Other
GOAL OF THE PROJECT	
DELIVERABLES	
PAGES / SCREENS / FEATURES	
TECHNOLOGY	
NOT INCLUDED	
CLIENT WILL PROVIDE	
START DATE	
TARGET LAUNCH DATE	

Milestones

#	MILESTONE	DUE DATE
1		
2		
3		
4		
5		

Schedule B

Fees and payment

PAYMENT	SHARE	AMOUNT	DUE
Deposit	50%		On signing, before work starts
Final payment	50%		On delivery, before launch
Total	**100%**		

CURRENCY	☐ Nigerian Naira (₦) ☐ US Dollars ($)
HOURLY RATE FOR EXTRA WORK	
EXPECTED THIRD-PARTY COSTS	
PAYMENT DETAILS	

Receipts are issued for every payment. Quoted prices are valid for 30 days from the proposal date.